



POLICE DEPARTMENT

June 26, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300421 (Incident Date: January 4, 2023) regarding Detective Matthew Panik, Tax No. 961064 (DADS No. 2024-30677)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300421, pertaining to Detective Matthew Panik. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Panik would be detrimental to the Police Department's disciplinary process.

In this case, Detective Panik responded to a 911 call of a male swinging what appeared to be a "Samurai" sword. Upon arrival, Detective Panik observed a male holding a sword and immediately gave clear and concise orders to drop the sword and walk away from it. Despite the male complying with orders to drop the sword and move away, once the officers attempted to place him into handcuffs, he grew non-compliant and his behavior escalated into physical resistance. The Police Commissioner has determined the continued presence of the sword, the male's apparent strength, and his continued physical resistance, showed the incident was clearly escalating in nature. There was the potential for this to evolve into a tragic event if the officers were not able to secure custody of the male. The Police Commissioner has also determined the use of force by Detective Panik was proper. While there was contact with Detective Panik's hand and the male's neck, the contact was incidental, and de minimis in time during a stressful and dangerous encounter.

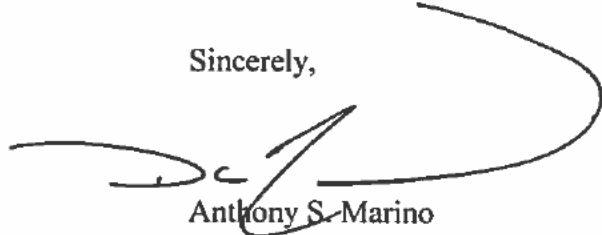
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In addition to CCRB's investigation into Detective Panik's use of force, the Department also conducted a parallel investigation. The internal investigation exonerated Detective Panik and determined he used the minimum necessary force to gain compliance on an aggressive and physically resistant arrestee. In investigating the incident, the Department reviewed all relevant documents, Body Worn Camera footage, and interviewed members involved. The Police Commissioner agrees with the conclusion from the Department investigation, and believes the actions of Detective Panik were in line with applicable law and policy, and no misconduct occurred.

For these reasons, the Police Commissioner finds that Detective Panik's actions were within guidelines and discipline is unwarranted. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, when there is a parallel investigation, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the force allegation against Detective Panik.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', is written over the typed name. The signature is stylized with a large, sweeping loop on the right side.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

July 1, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202300421 (Incident Date: January 4, 2023) regarding Detective Matthew Panik, Tax No. 961064 (DADS No. 2024-30677)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 26, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

The statute of limitations for the allegations set forth in the Charges and Specifications is July 4, 2024. The CCRB filed the charges in this matter on May 15, 2024, however the Deputy Chief’s letter was not received until June 26, 2024. The CCRB requests that these types of letters be sent with adequate time to respond as per the Memorandum of Understanding or that the NYPD serve the charges upon respondents to preserve the statute of limitations, allowing the CCRB adequate time to respond.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s request for Charges and Specifications in this matter you have determined that to pursue Charges and Specifications against Detective Panik would be detrimental to the Police Department’s disciplinary process. Furthermore, he stated that you intend to retain jurisdiction over this matter and impose no disciplinary action against Detective Panik.

CCRB disagree with the Police Commissioner’s determination Detective Panik’s contact with the male’s neck was incidental and de minimis in timing.

The evidence in this case makes it clear that the complainant, § 87(2)(b) [REDACTED] complied with the orders when he dropped the sword upon seeing the Police officers. When

Detective Panik attempted to arrest § 87(2)(b) it was unnecessary for the detective to place his hands on the neck of § 87(2)(b) Detective Panik placing his hands on the neck of § 87(2)(b) was a chokehold.

NY Patrol Guide Procedure 221-03 states a “chokehold shall include but is not limited to any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow.” The BWC clearly shows that Detective Panik’s hands were placed on § 87(2)(b) neck several times causing § 87(2)(b) head to move in response to pressure. Det. Panik applied each time he contacted the front and side of § 87(2)(b) neck. Given that any pressure applied to the throat, windpipe, or carotid artery is prohibited Detective Panik’s actions constitute a chokehold.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit the CCRB to pursue Charges and Specifications against Detective Panik in this matter.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300421 (Incident Date: January 4, 2023) regarding Detective Matthew Panik, Tax No. 961064 (DADS No. 2024-30677)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 1, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Matthew Panik. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Panik for the reasons expressed in my June 26, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Detective Panik for the allegation of wrongful use of force.

Sincerely,

AS
Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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